

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 2

City of Waterville

Appendix 1B

Committee Charge: Board of Zoning Appeals [Adopted 12-28-2023 by Ord. No. 199-2023]

Establishment and Regulation.

City of Waterville Zoning Ordinance, Chapter 275, § 275-6.2, Zoning Board of Appeals
1 M.R.S., Chapter 13, Freedom of Access
City of Waterville Ethics Ordinance (Chapter 18)
30-A M.R.S. § 2691, Board of Appeals

Purpose.

The Board is charged with hearing appeals from a decision of the Code Enforcement Officer, makes decisions on nonconforming uses and grants variances.

Membership.

Membership shall be comprised of five members and two associate members for three-year terms appointed by the municipal officers. Associate members shall act on said Board with full powers in place of any member who may be unable to act due to conflict of interest, absence, or physical incapacity.

Scope of Authority.

The Board's role is to hear and decide appeals where it is alleged that there is an error in any order, decision, requirement, interpretation, or ruling made by the Code Enforcement Officer in the administration or enforcement of the Zoning Ordinance. The Board also has the power to grant appeals from the provisions of the Zoning Ordinance to permit the change of a lawful nonconforming use to another nonconforming use, to expand into a zone where it would be nonconforming, to determine the precise location of any zoning district boundary line, and to grant variances under specific instances.

Decisions rendered must include a statement of findings and conclusions, as well as the reasons or basis for the findings and conclusions upon all the material issues of fact, law or discretion presented and the appropriate order, relief or denial of relief. Notice of any decision must be mailed or hand-delivered to the petitioner, the petitioner's representative or agent, the planning board, agency or office and the municipal officers within seven days of the boards' decision. The Board may reconsider any decision reached within 45 days of its prior decision. Any party may take an appeal, within 45 days of the date of the vote on the original decision, to Superior Court from any order, relief, or denial in accordance with the Maine Rules of Civil Procedure, Rule 80B.

It is not authorized to make promises or enter into verbal or written agreements purporting to represent the City, to permit heavy industrial use in a commercial district, to permit commercial use in a residential district, to permit residential use in an industrial district, to allow the placement of single-wide mobile homes in other than the Rural Residential District, or to permit residential, commercial and industrial structures in the Resource Protection District.

Conduct of Business.

The Board is an official body of the City. As such it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Board may participate in a matter before the Board where that member has a conflict of interest. If a question arises as to whether a member has a conflict of interest, after disclosure, the remaining

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members shall make that determination. The Board may review the Ethics Ordinance or consult with the Solicitor on conflict of interest questions.

The Board shall elect annually a Chair and a Secretary from its membership within two weeks after the City inauguration. A quorum of the Board consists of four members. The Secretary shall maintain a permanent record of all Board meetings and all correspondence of the Board. All records of the Board are public records. Upon receipt of the filing of an application, the Code Enforcement Officer shall immediately schedule a public hearing to be held within 45 days of the filing of the application. The Board shall conduct a de novo hearing.

Reporting.

Notice of any decision must be mailed or hand-delivered to the petitioner, the petitioner's representative or agent, the planning board, agency or office and the municipal officers within seven days of the Board's decision.